



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

NOTICE OF CLAIM AGAINST A GOVERNMENT ENTITY

Mandatory pre-suit notice - must be filed before suing any department or officer

APPLICANT / REQUESTOR Full name / entity Role / department (if any)	CASE NUMBER (UCN) Format: 26-CF-000123 (YY - TYPE - NUMBER) DIVISION JUDGE / HEARING OFFICER CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims
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HOW TO USE THIS FORM

You cannot sue a police department, sheriff's office, fire department, or any other government body in Clearwater County until you file this notice and wait out the review period. Serve one copy on the department and one on the County Attorney. Keep the stamped copy - you must attach it to your complaint (Form CV-01).

CLAIMANT

CHARACTER OR ENTITY NAME 	TYPE (INDIVIDUAL / BUSINESS / AGENCY) 	USERNAME 	
CONTACT HANDLE 	RESIDENCE OR PREMISES 	OCCUPATION / EMPLOYER 	REPRESENTED BY

GOVERNMENT ENTITY OR EMPLOYEE BEING CLAIMED AGAINST

DEPARTMENT / AGENCY 	INDIVIDUAL OFFICER OR EMPLOYEE 	BADGE / ID NO.
SUPERVISOR AT THE TIME 	SHIFT / UNIT 	SECOND EMPLOYEE INVOLVED

THE INCIDENT

DATE OF INCIDENT MM/DD/YY	TIME HH:MM	LOCATION 	
INCIDENT / CAD NO. 	RELATED CRIMINAL CASE NO. 	BODY CAMERA FOOTAGE EXISTS 	IA COMPLAINT FILED

NATURE OF THE CLAIM

☐ Excessive or unreasonable force	☐ False arrest without probable cause
☐ Unlawful search or seizure	☐ False imprisonment / over-detention
☐ Malicious prosecution	☐ Denial of medical care in custody
☐ Property damaged during a search	☐ Property lost or not returned from evidence
☐ Vehicle damaged during a pursuit or stop	☐ Negligent operation of a government vehicle
☐ Negligent hiring, training, or supervision	☐ Failure to intervene by another officer
☐ Retaliation for filing a complaint	☐ Discrimination in the provision of services
☐ Wrongful termination of a public employee	☐ Other (describe below)

DETAILED STATEMENT OF THE INCIDENT

WHAT HAPPENED, IN ORDER. INCLUDE WHAT EACH EMPLOYEE DID, WHAT WAS SAID, AND WHO WITNESSED IT.

INJURIES AND DAMAGES SUSTAINED

PHYSICAL INJURIES, MEDICAL TREATMENT, PROPERTY DAMAGE, LOST INCOME

DAMAGES CLAIMED

EMS AND HOSPITAL BILLS

ONGOING TREATMENT COSTS

PROPERTY DAMAGE

LOST WAGES

PAIN AND SUFFERING

OTHER LOSSES

TOTAL CLAIM AMOUNT

SETTLEMENT DEMAND

WITNESSES

NAME	ROLE	CONTACT	STATEMENT OBTAINED

DOCUMENTS ATTACHED

- ☐ Photographs of injuries or damage
- ☐ Repair estimates
- ☐ Body camera or dash camera reference numbers
- ☐ Internal Affairs complaint (Form AD-05)
- ☐ EMS treatment records
- ☐ Arrest affidavit or citation
- ☐ Witness statements
- ☐ Public records request response (Form AD-03)

STATUTORY WAITING PERIOD

The agency has 45 days from the date this notice is received to investigate and respond. You may not file suit during that period. If the agency denies the claim or does not respond in time, you may then file a complaint under Form CV-01 and attach a stamped copy of this notice.

I declare that the statements in this notice are true and accurate to the best of my knowledge. I understand that a knowingly false claim against a government entity may be grounds for dismissal and sanctions.

CLAIMANT OR COUNSEL

PRINTED NAME

DATE

RECEIVED BY - COUNTY ATTORNEY
Date and time stamp

RECEIVED BY - AGENCY
Date and time stamp

PRINTED NAME

DATE

AGENCY RESPONSE DUE
45 days from receipt

AGENCY DISPOSITION (COMPLETED BY THE ENTITY)

- ☐ **CLAIM DENIED**
The entity denies liability. The claimant may proceed to file suit.
- ☐ **CLAIM ACCEPTED - SETTLEMENT OFFERED**
The entity offers the amount below in full settlement.
- ☐ **CLAIM UNDER INVESTIGATION - EXTENSION REQUESTED**
The entity requests additional time as stated below.
- ☐ **CLAIM RESOLVED ADMINISTRATIVELY**
Resolved without payment. See explanation below.

SETTLEMENT OFFERED

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RESPONSE DATE

MM/DD/YY

REVIEWING OFFICIAL

BASIS FOR THE AGENCY'S DECISION

AGENCY LEGAL REPRESENTATIVE

PRINTED NAME

DATE